



Fuster & Associates

PRIME LAW

Buying Property in Spain

2026 Guide



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We were founded in 1997 and have since **helped over 20,000 international clients purchase properties in Spain.**

We are well known in the Spanish real estate sector for our **professionalism** and **diligence**, factors which have allowed us to provide our clients with consistently excellent results.



The Guide

Purchasing property in Spain has been popular for many years and will continue to be so. There are numerous reasons for this which include the **wonderful climate**, **enviable lifestyle** and strong **international travel connections**.

The purchase process in Spain is **not inherently complicated** but it can pose difficulties to foreign buyers due to the language barrier and the unique characteristics of the Spanish legal and tax systems.

This guide will explain the purchase process, give a breakdown of the costs involved, answer frequently asked questions and illustrate how our services help make the process simple and stress-free.



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Cost Breakdowns

One of the things that our clients consistently ask us is what costs are involved in the purchase of a Spanish property.

The following tables provide indicative cost breakdowns for property purchases in the regions of Valencia (Costa Blanca), Murcia (Costa Cálida) and Andalucía (Costa Almería). Actual costs may vary depending on the specific property, transaction details, and applicable taxes or fees.

Valencia Region: Resale

Price of the property	€ 150,000
ITP Tax: 9%	€ 13,500
Notary fees	€ 1,500
Registry fees	€ 700
Utilities	€ 500
Solicitor's fees	€ 1,495 + VAT
Total Price	€ 168,009

Valencia Region: New- Build

Price of the property	€ 150,000
VAT: 10%	€ 15,000
Stamp duty: 1.4%	€ 2,100
Notary fees	€ 1,500
Registry fees	€ 700
Utilities	€ 500
Solicitor's fees	€ 1,500 + VAT
Total Price	€ 171,615

*Based on actual law



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Murcia Region: Resale

Price of the property	€ 150,000
ITP Tax: 7,75%	€ 11,625
Notary fees	€ 1,500
Registry fees	€ 700
Utilities	€ 500
Solicitor's fees	€ 1,495 + VAT
Total Price	€ 166,134

Murcia Region: New- Build

Price of the property	€ 150,000
VAT: 10%	€ 15,000
Stamp duty: 1.5%	€ 3,000
Notary fees	€ 1,500
Registry fees	€ 700
Utilities	€ 500
Solicitor's fees	€ 1,500 + VAT
Total Price	€ 172,515

*Based on actual law





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Andalucia: Resale

Price of the property	€ 150,000
ITP Tax: 7%	€ 10,500
Notary fees	€ 1,500
Registry fees	€ 700
Utilities	€ 500
Solicitor's fees	€ 1,495 + VAT
Total Price	€165,009

Andalucia: New- Build

Price of the property	€ 150,000
VAT: 10%	€ 15,000
Stamp duty: 1.2%	€ 1,800
Notary fees	€ 1,500
Registry fees	€ 700
Utilities	€ 500
Solicitor's fees	€ 1,500 + VAT
Total Price	€ 171,315

*Based on actual law





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Stage Payments

The following table gives a basic guide on the structure of stage payments for Spanish new-build and resale properties.

* This is an example. The Payment structure is negotiable between the parties involved

Resale

€3,000 upon signing the contract

+30 days: 10%

Balance on completion

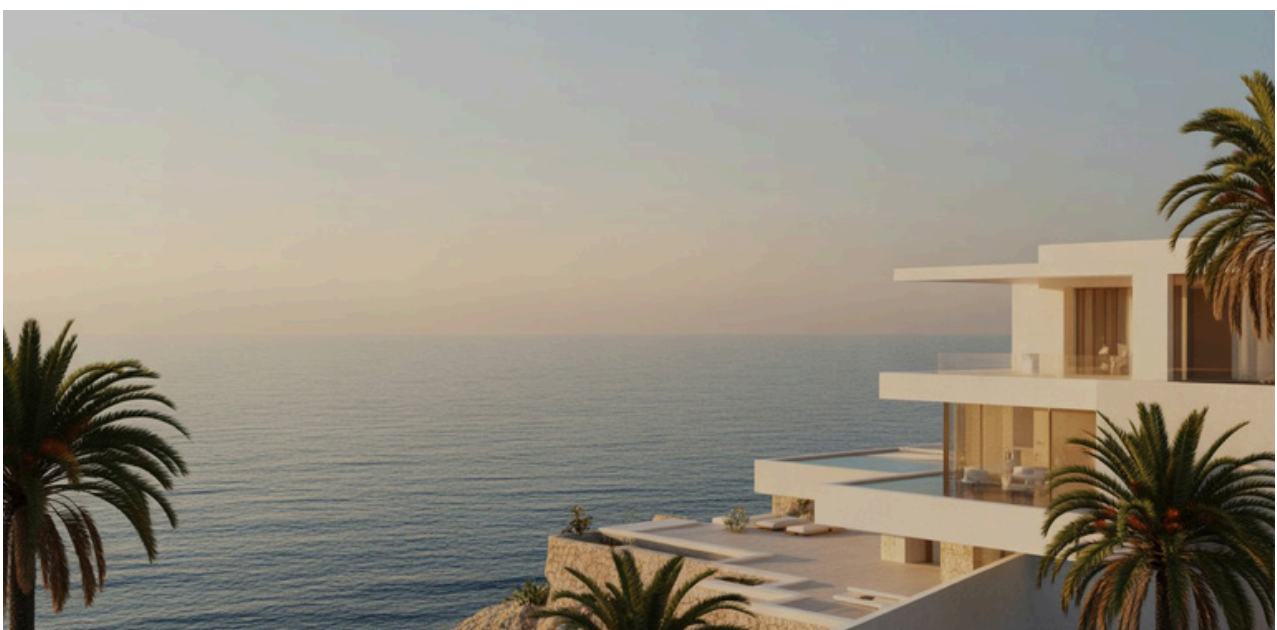
New Build

€10,000 upon signing the contract

+30 days: 25%

+90 days: 25%

Balance on completion

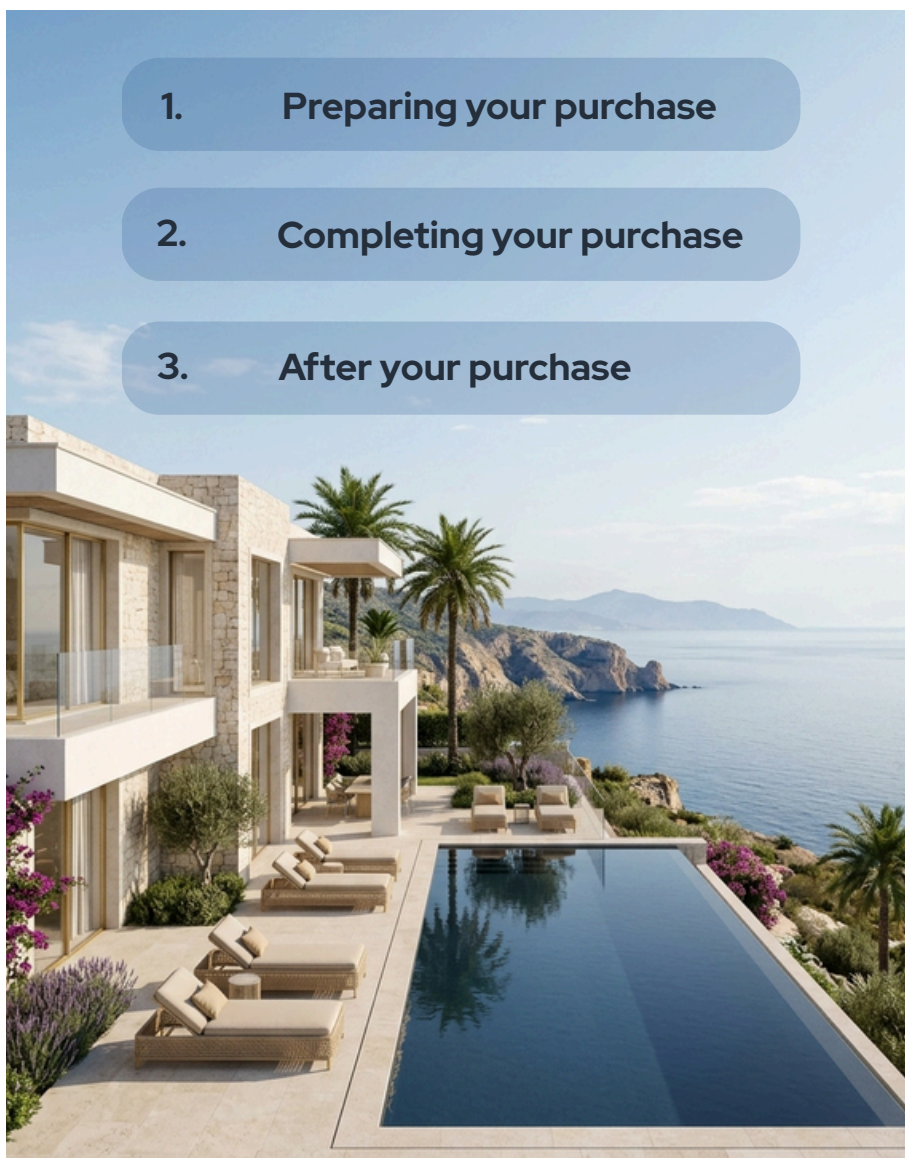




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Buying a Spanish Property: The Process

Below we have broken down the purchase process into a simple step by step guide which will show you exactly what is involved at each stage, and how we help.





1. Preparing Your Purchase

A) Reservation / Private Purchase Contract

★ What is it?

A contract signed between the vendor and the buyer prior to completion to formalise the purchase agreement between the two parties.
In some cases a reservation contract is signed before a purchase contract.

☛ What we do

We will check the contract for you prior to you signing it and explain its terms to you.
Advise you on whether or not it is in your interests to sign the contract.

B) Power of Attorney

★ What is it?

The Power of Attorney is a document that gives **authorization to you lawyer to act on your behalf.**

A condition of every PoA is that all actions taken on your behalf must be to your benefit.

☛ What we do

We will explain the content and ramifications of the Power of Attorney and provide a translation.

We will ensure you are entirely happy with the document before signing it.



C) NIE Number

★ What is it?

The NIE number is a **fiscal identification number** required by foreigners before making any transaction in Spain.

☛ What we do

We will make the application for the NIE number on your behalf, and once the document is ready, we will collect it from the authorities.

D) Open a Spanish Bank Account

★ What is it?

Non-EU

It is essential to have a **Spanish Bank Account** in order to pay electricity and water bills as well as community of owners' fees and council tax. **Direct Debit** can be set up for all these payments.

☛ What we do

We **will open the account for you** and provide you with information on Spanish banking practices.



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E) Due Diligence

★ What is it?

Research that must be carried out before buying in Spain.

The research conducted will be dependent on whether the property is a **new-build** or a **resale**.

☛ What we do

We will undertake a comprehensive study of the property and ensure that the purchase is **entirely legal and safe** and that your interests are fully protected.





2. Completing Your Purchase

A) The Completion

★ What is it?

The Notarial Deed takes place at the **notary's office**, where the remaining balance for the property is transferred, together with the legal transfer of ownership and the handing over of the keys.

☛ What we do

We will carefully check the contract, ensure that everything is in order and once satisfied that this is the case, **sign on your behalf**. **You will not need to be present**.

B) Property Taxes & Fees

★ What is it?

A total of 3 taxes and fees must be paid on completion: **notary, registry fees & ITP (Transfer tax)**. *For new-build properties Stamp Duty and VAT must also be paid.

☛ What we do

We will calculate exactly how much is owed for each of these taxes & fees, inform you of the amounts, and make all payments on your behalf.

*Based on actual law



C) Register Property Deeds

★ What is it?

The **notarised deed (escritura)** must be registered at the local land registry. It is in your interests to get this done as quickly as possible after the completion.

☛ What we do

We will handle this process and register the deeds on your behalf ensuring that it is done quickly and efficiently.

D) Utilities & Services

★ What is it?

You will need to get **water, electricity / gas, community of owners** (where relevant) and **council tax** changed into your name.

☛ What we do

We will handle the whole process and make sure all changes are made correctly.



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3. After Your Purchase

A) Tax

After purchasing your property you will need to make sure that you are aware of, and fulfil, your tax obligations in Spain.

Information of our Tax Services can be found on page 17 of this guide.

B) Inheritance Planning

Inheritance planning and obtaining a Spanish Will is a vital step to take after making your property purchase as it will act as a safeguard against any eventualities.

C) Enjoy Spain

You are moving here for a reason, incredible weather, beautiful beaches, lovely people and a healthy lifestyle make Spain a perfect place to live.





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Frequently Asked Questions

Q.

How do I get finance to buy a Spanish property?



A.

You will be able to obtain a mortgage from a Spanish bank or lenders based in your country of origin.

What are the costs involved in getting mortgage finance?



The set up costs will amount to approximately 4-5% of the amount borrowed.

Non-EU
How can I transfer money into my overseas account?



This can be done via bank transfers which will take 3-5 days or you can use a commercial foreign exchange company which may offer better rates and faster transfers.

Is a survey carried out on the property, its structure and its foundations?



New-build properties have a 10 year construction guarantee and a certificate from the architect. Surveys will not be carried out on resales unless it is specified as a requirement in which case it will be arranged.



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Frequently Asked Questions

Q.

What action can be taken if the developer does not complete the property within the agreed time period?



A.

If the developer does not complete the property within the agreed timeframe, you may be entitled to compensation. Delays of more than 7 months may justify a claim, depending on the circumstances of the case. If you have any doubts, please [contact us for advice](#).

How should property ownership be structured for tax reasons?



There are various ways to structure the ownership of the property (listed below) and each has its own advantages and disadvantages.

We will advise you on which is most beneficial for you.

- In your own name
- In joint names: yourself and your spouse or co-purchaser
- In your children's or inheritors' names
- In the name of a limited company





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Frequently Asked Questions

Q.

What would happen if the developer goes bankrupt?



A.

If the builder goes bankrupt and you have bank guarantees then the money paid will be refunded. If the bank guarantees were not provided then legal action will have to be taken against the bank.

Who pays the Seller's tax?



If the seller is non-resident then the buyer is required by law to pay 3% of the purchase price to the tax office to cover the seller's potential tax liabilities. However, this does not impact the purchase price and simply means that 97% of the price will be paid directly to the seller with the remaining 3% going to the tax office.

What are the yearly costs for owning a Spanish property?



Approximate amount will be:

- Council tax: €300 - €1000+
- Non-Resident tax: €150 - €800+
- Community fees: (where applicable)

*Based on actual law

You can appoint us as your fiscal representative and we will take care of your tax returns.



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Why Seek Professional Advice?

Regulations in Spain may vary by region, and every personal situation is different. Mistakes during the property purchase process or in related tax obligations can lead to unnecessary penalties and complications.

With more than **25 years of experience** in non-resident taxation, property law, and expatriate services, **Fuster & Associates** assists clients worldwide in successfully navigating the Spanish property market and complying with all legal and tax requirements.

We provide personalised **tax and legal roadmaps** for non-residents and future residents, ensuring **peace of mind, compliance**, and **long-term security** when purchasing property in Spain.

Buying property in Spain is a significant investment, and understanding your legal and tax obligations from the outset is essential.

Contact Fuster & Associates for expert advice tailored to your personal circumstances.





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Our Services

Immigration

Expert legal assistance for visas, residency, work permits, and Spanish citizenship, with personalized guidance throughout every step of the relocation process to Spain.

- Non-Lucrative Visa
- Options After Golden Visa
- Retirement Visa
- Entrepreneur Visa
- EU Family Member Residency
- Family Reunification Visa
- Seeking Job Visa
- Digital Nomad Visa
- Working Employee / Self-Employed Visa
- Visa Renewal

Property Law Services

Legal assistance for property purchases, sales, inheritance, contracts, and real estate transactions in Spain, with comprehensive support to ensure full legal compliance and protect your interests throughout the process.

- Purchase Conveyancing
- Sales Conveyancing
- Off-Plan Property Purchases



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Tax Services

Specialized tax services for residents, non-residents, and property owners in Spain, including tax returns, non-resident taxation, inheritance tax, wealth tax, and tax planning. Each section includes additional related services.

- Tax Planning and Optimization in Spain
- Property Tax Services
- Non-Resident Tax Services
- Tax Investigation
- Business & Special Tax Regimes

Wills & Inheritance

Legal assistance with wills, inheritance, probate, and estate planning in Spain for international clients, ensuring full compliance with Spanish and EU succession laws.

- Wills and Inheritance



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Spanish Property Purchase Guide

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